



Maritime Circular No.18

To:

Ship – Owners / Managers / Operators, Registration Officers (RegOffs), Recognised Organisations (ROs), SLMARAD Departments (All)

Subject:

Hours of Rest

Date:

07th January 2025

References:

Maritime Labour Convention, 2006

IMO/ILO Guidelines for the development of tables of Seafarer's shipboard working arrangements and formats of records of seafarer's hours of work or hours of rest, 1999

SLMARAD Maritime Circular No. 15

Merchant Shipping (Standards of Training, Certification and Watchkeeping for Seafarers) Regulations, 2021

Purpose

To provide instructions in relation to minimum hours of rest to implement the requirements of Maritime Labour Convention, 2006 and the International Conventions in Standards of Training, Certification and Watchkeeping for Seafarers, 1978 as amended.

For the purpose of this Maritime Circular, the following definitions apply:

"Hours of Work", means the time during a seafarer is required to do work on account of the ship.

"Hours of Rest", means time outside of the hours of work and does not include short breaks.

"Seafarer", means any person who is employed or engaged or works in any capacity on board a ship.

"Shipowner(s)", means the owner of the ship or another organization or person, such as the manager, agent or bareboat charterer, who has assumed the responsibility for the operation of the ship from the owner and who, on assuming such responsibility, has agreed to take over the duties and responsibilities imposed on shipowners, regardless of whether any other organization or persons fulfil certain of the duties or responsibilities on behalf of the shipowner.

"Night", means a period of at least nine consecutive hours, including the interval from midnight to five (5) a.m. (Local Time).

Application

1. Shipowners must ensure that all seafarers are provided with the minimum hours of rest as specified by Regulation 2.3 of the MLC, 2006 and this Circular.
2. The limit on hour of rest must not be less than:

- a. Ten hours in any twenty-four (24) hour period; and
 - b. Seventy-seven (77) hours in any seven (7) day period.
3. The hours of rest may be divided into no more than two periods, one of which shall be at least six (6) hours in length, and the interval between consecutive periods of rest shall not exceed fourteen (14) hours.
4. Any drills must be conducted on board in a manner that minimizes the disturbance of rest periods and does not induce fatigue.
5. In respect of situations when a seafarer is on call, such as when a machinery space is unattended, the seafarer shall have an adequate compensatory rest period if the normal period of rest is disturbed by call-outs to work.
6. The Master of a ship has the right to require a seafarer to perform any hours of work necessary for the immediate safety of the ship, persons on board or cargo, or for the purpose of giving assistance to other ships or persons in distress at sea. The Master can suspend the schedule of hours of work or hours of rest and require a seafarer to perform any hours of work necessary until the normal situation has been restored. As soon as practicable after the normal situation has been restored, the Master must ensure that any seafarers who have performed work in a scheduled rest period are provided with an adequate period of rest.
7. No seafarer under 18 years of age shall work at night unless the seafarer is under an effective training of young seafarers in accordance with established programmes and schedule.
8. A table with the shipboard working arrangements shall be posted in an easily accessible place on-board the ship and the table shall contain for every position at least the following:
 - a. The schedule of service at sea and in port; and
 - b. The maximum hours of work and minimum hours of rest.
9. The table of the shipboard working arrangements shall be in the form of Appendix 3 to the IMO/ILO Guidelines referenced to this Circular.
10. Shipowners shall maintain records of seafarer's daily hours of work or of their daily hours of rest in accordance with the form Appendix 4 to the IMO/ILO Guidelines, referenced to this Circular. Each seafarer shall receive a copy of the record pertaining to him or her which shall be endorsed by the Master, or a person authorised by the Master and by the seafarer.
11. SLMARAD may authorise or register collective agreements permitting exceptions to the limits set out in this Circular and any exceptions shall, as far as possible, follow the standards set out in this Circular but may take account of more frequent or longer leave periods or the granting of compensatory leave for the Watchkeeping seafarers or seafarers working on board ships on short voyages.
12. The above will enter into effect as of 7th January 2025.

For additional information please contact SLMARAD at info@slmarad.com

Revision Status

Date	Revision	Comments - Changes
11/01/2017	0	Initial - Adopted
07/01/2025	1	Amended definitions and references